

Voluntary Report – Voluntary - Public Distribution

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Report Name: Update on TFDA residue in foods implementation for Paraquat and Chlorpyrifos

Country: Thailand

Post: Bangkok

Report Category: Grain and Feed, Trade Policy Monitoring, Oilseeds and Products, Strawberries, Potatoes and Potato Products, Stone Fruit

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Report Highlights:

The Thai Food and Drug Administration (TFDA) has yet to amend its notification to apply a zero tolerance on the Maximum Residue Limits (MRLs) for Paraquat and Chlorpyrifos. Post is monitoring the development of TFDA's revised notification on these residues to avoid trade disruption for some U.S. agricultural commodities and high-value products.

On April 1, 2020, Thailand notified the WTO of the Ministry of Industry's (MOI) draft Notification (G/TBT/N/THA/567) regarding the recategorization of the agricultural chemicals Chlorpyrifos and Paraquat from a category 3 chemical (subject to restriction) to a category 4 chemical (prohibited for production, importation, exportation, and possession) with an enforcement date of June 1, 2020. By mandate of the National Hazardous Substances Committee (NHSC), the Thai Food and Drug Administration (TFDA), the Ministry of Public Health (MOPH), a regulatory agency responsible for establishing Maximum Residue Limits (MRLs), is supposed to amend its notification [i.e. Notification No. 387 B.E. 2560 (2017)] to apply a zero tolerance on the MRLs for Chlorpyrifos and Paraquat.

The TFDA has not published a notification applying a zero tolerance on the MRLs for Chlorpyrifos and Paraquat. The TFDA's Food Committee is waiting to see how the NHSC will respond to WTO member countries' comments on the MOI's notification. The next meeting date of the NHSC is still unknown due to the COVID-19 outbreak.

Importers are concerned that the ban could affect the importation of U.S. wheat and soybeans into Thailand as the two substances, especially Paraquat, are in use in the United States. In 2019, U.S. traders exported U.S. \$630 million worth of soybeans and wheat into Thailand.

The notification process of the TFDA is as follows: 1) the TFDA's internal Food Committee drafts its own notification to align with MOI's notification; 2) then, the TFDA notifies the WTO of its proposed regulation change for comments; and 3) last, the revised notification is published in the official Royal Gazette and become effective on that date, or the date listed in the notification.

There is no impact on trade at the moment. Chlorpyrifos and Paraquat are listed as restricted hazardous substances for which the TFDA sets MRLs. The current MRL for Chlorpyrifos is 0.005 – 1 mg/kg for several grains, vegetables, and fruits, as well as meats and offal. The current MRL for Paraquat is 0.005 – 2 mg/kg for several grains, including soybean and sorghum, vegetables, and fruits, as well as meats and offal. The table below compares the MRLs set by Thailand with the MRLs set by CODEX for these two chemicals, the majority of which are the same. The absence of a number for CODEX means there is no set level for that chemical.

The NHSC assigned the Department of Agriculture (DOA) under the Ministry of Agriculture and Cooperatives (MOAC), to develop measures to mitigate the economic impacts of the ban on all stakeholders. The DOA was supposed to submit their findings by March 26, 2020 (4 months from the date of the NHSC determination). However, there has been no announcement on the status of that report.

FAS/Bangkok will continue to monitor and report on this situation.

MRLs for Paraquat
Paraquat (unit: mg/kg)

Commodities	Thai FDA	Codex
Maize	0.03	0.03
Sorghum	0.03	0.03
Pulse	---	0.5
Pulse except soya bean (dry)	0.5	---
Soya bean	0.1	---
Soya bean fodder	---	0.5
Fruits (inedible peel, except citrus fruits)	0.01	0.01
Citrus fruits	0.02	0.02
Potato	0.05	0.05
Strawberries	0.01	0.01
Grapes	0.01	0.01
Poultry Meat	0.005	0.005
Poultry, edible offal of	0.005	0.005
Eggs	0.005	0.005
Milk	0.005	0.005

MRLs for Chlorpyrifos
Chlorpyrifos (unit: mg/kg)

Commodities	Thai FDA	Codex
Spices, fruits or berries	1	1
Soya bean (dry)	0.1	0.1
Peanut	0.05	---
Sweet potato	0.05	---
Potato	---	2
Cattle Meat	1 (fat)	1 (fat)
Cattle, Edible offal of	0.01	0.01
Goat, edible offal of	0.01	---
Sheep, edible offal of	0.01	0.1
Pig meat	0.02 (fat)	0.02 (fat)
Pig, edible offal of	0.01	0.01
Eggs	0.01	0.01
Milk	0.02	0.02

End of Report.

Attachments:

No Attachments.